

Balram v. State of U.P. And 3 Others

High Court of Judicature at Allahabad · Division Bench · 17 March 2025 · 2025:AHC:37600-DB · WRIT - C No. - 7617 of 2025 · **Writ disposed of; petitioner directed to file Clause 6.5 objection, to be decided in six weeks.**

HEADNOTE

Writ disposed of without merits adjudication. Petitioner directed to file an application/objection under Clause 6.5 of the U.P. Electricity Supply Code, 2005 within two weeks; the concerned authority shall decide it within six weeks of filing after hearing the petitioner.

FACTUAL SUMMARY

Balram filed a writ petition in the Allahabad High Court against the State of Uttar Pradesh and three others. Counsel for the petitioner and counsel for respondents 2 to 4 (the distribution licensee) were heard. The order does not record the underlying billing or supply grievance. The Court did not decide that dispute on merits and instead confined itself to a direction that the petitioner pursue the statutory application/objection under Clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-to-executive-engineer-under-6.5

HOLDING

A writ petitioner may be directed to file an application/objection under Clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005; if filed within two weeks, the concerned authority shall decide it within six weeks of filing after granting an opportunity of hearing. The writ is disposed of without a merits grant or refusal. ¶ 2-3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PETITIONER'S ELECTRICITY GRIEVANCE

The Court did not examine the underlying supply or billing dispute and relegated the petitioner to Clause 6.5. ¶ 2-3